

Sugar Development Fund Act, 1982

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Union of India - Act

Sugar Development Fund Act, 1982

UNION OF INDIA

India

Sugar Development Fund Act, 1982

Act 4 of 1982

Published on 19 March 1982

Commenced on 19 March 1982

[This is the version of this document from 24 March 2008.]

[Note: The original publication document is not available and this content could not be verified.]

[Amended by

The Sugar Development Fund (Amendment) Act, 2002 (Act 30 of 2002)

on

1 January 2002

]

[Amended by THE SUGAR DEVELOPMENT FUND (AMENDMENT) ACT, 2008 (Act 04 of 2008) on

24 March 2008

]

Sugar Development Fund Act, 1982

Act

No. 4 of 1982

1146.

Objects and Reasons.- With the view of providing assistance for the purposes of rehabilitation and modernisation of sugar factories, for development of sugarcane in the areas in which sugar factories are situated and for encouraging research aimed at development of sugar industry, this Bill seeks to provide for the formation of a fund to be known as the Sugar Development Fund, and to provide for all matters connected therewith.

2. The cess on sugar collected under the provisions of the Sugar Cess Bill, 1981, after deducting the cost of collection, would be credit to the said fund. The purposes for which the monies in the fund may be applied have been specified in clause 4 of the Bill. For the purpose of securing speedy consideration and disposal of application for assistance from the fund, clause 6 provides for the constitution of a committee of officers of the Central Government.

Amending Act 64 of 1982.- The Bill is a sequel to the Sugar Cess (Amendment) Bill, 1962. For the purpose of generating the necessary funds for maintaining buffer stock of sugar, the Sugar Cess (Amendment) Bill, 1982, seeks to amend the Sugar Cess Act, 1982, for increasing the rate at which cess may levied under the Act on sugar. This Bill seeks to amend the Sugar Development Fund Act, 1982, to provide that the Sugar Development Fund under the Act, to which the proceeds of the duty of excise levied and collected under the Sugar Cess Act, 1982 as reduced by the cost of collection, are required to be credited after due appropriation made by Parliament by law, may be utilised also for the purpose of defraying some holding costs and interest charges to sugar mills for building up and maintenance of buffer stocks of sugar.

[19th March, 1982.]

An Act to provide for the financing of activities for development of sugar industry and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Thirty-third Year of the Republic of India as follows :-

1.

Short title, extent and commencement.

(1)

This Act may be called the Sugar Development Fund Act, 1982.

(2)

It extends to the whole of India.

(3)

It shall come into force on such [date]

[1-6-1982 :vide notification No.G.S.R.436 (E) dated 29-5-1982,Gazette of India Extraordinary 1982 ,Pt.II Section 3(I)]
as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Committee" means the Committee constituted under section 6;

(b)

"Fund" means the Sugar Development Fund formed under section 3;

(c)

"prescribed" means prescribed by rules made under this Act;

(d)

all other words and expressions used in this Act and not defined; but defined in the Sugar Cess Act, 1982, shall have the meanings respectively assigned to them in that Act.

3.

Sugar Development Fund.

(1)

There shall be formed a fund to be called the Sugar Development Fund.

(2)

An amount equivalent to the proceeds of the duty of excise levied and collected under the Sugar Cess Act, 1982, reduced by the cost of collection as determined by the Central Government, together with any moneys received by the Central Government for the purposes of this Act, shall, after due appropriation made by Parliament by law, be credited

to the Fund.

(3)

The Fund shall consist of the amounts credited under sub-section (2) and any income from investment of such amounts.

4.

Application of Fund.

(1)

The Fund shall be applied by the Central Government,-

(a)

for making loans for facilities the rehabilitation and modernisation of any sugar factory or any unit thereof or the undertaking of any scheme for development of sugarcane in the area in which any sugar factory is situated;

(aa)

[for making loans to any sugar factory or any unit thereof for bagasse-based co-generation power projects with a view to improving their viability;

[Inserted by Act No. 30 of 2002]

(aaa)

for making loans to any sugar factory or any unit thereof for production of anhydrous alcohol or ethanol from alcohol with a view to improving their viability;]

(b)

for making grants for the purpose of any research project aimed at development of sugar industry;

(bb)

[for defraying expenditure for the purpose of building up and maintenance of buffer stocks of sugar with a view to establishing price of sugar;]

[Inserted by Act 64 of 1982 s.z.(w.e.f.13-11-1982)]

(bbb)

[for defraying expenditure on internal transport and freight charges to the sugar factories on export shipments of sugar with a view to promoting its export;]

[Inserted by Act No. 30 of 2002]

(bbbb)

[for defraying expenditure for the purpose of financial assistance to sugar factories towards interest on loans given in terms of any scheme approved by the Central Government from time to time]

[New clause added by Sugar Development Fund (Amendment) Act, 4 of 2008]

(c)

for defraying any other expenditure for the purpose of this Act.

(2)

The manner in which any loans or grants may be made under this section and the terms and conditions subject to which such loans or grants may be made shall be such as may be prescribed.

5.

Applications for loans or grants Committee.

- Every application for loan or grant under section 4 shall be made to the Committee in such manner and in such form as may be prescribed.

6.

Committee.

(1)

For the purpose of securing speedy consideration and disposal of applications received under section 5 and for considering any problems arising in the course of the administration of this Act, the Central Government may constitute a committee of officers of that Government.

(2)

The composition of the Committee and the procedure to be followed by the Committee in the discharge of its functions under this Act shall be such as may be prescribed.

7.

Annual report of activities financed under the Act.

- The Central Government shall, as soon as may be, after the end of each financial year, cause to be published in the Official Gazette, a report giving an account of the activities financed under this Act during the financial year, together with a statement of accounts.

8.

Power to call for reports and returns.

- The Central Government may require an occupier of a sugar factory or furnish, for the purposes of this Act, such statistical and other information, in such form and within such period as may be prescribed.

9.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for,-

(a)

the manner in which any loans or grants may be made and the terms and conditions subject to which such loans or grants may be made under section 4;

(b)

the manner and form in which applications may be made under section 5;

(c)

the composition of the Committee under section 6 of the procedure to be followed by the Committee in the discharge of its functions under this Act;

(d)

the form in which and the period within which statistical and other information may be furnished under section 8;

(e)

any other matter which is required to be or may be prescribed.

(3)

Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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